

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Frederick S. Chung**

Rachel Tien, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: December 3, 2024 TIME: 9:00 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court 3.1308(a)(1) and Local Rule 8.E.

LINE #	CASE #	CASE TITLE	RULING
LINE 8	24CV442346	Jamal Ramses Eagle Comes Looking El Bey v. Lor Xiong et al.	Motion to “supplement the record”: the court does not understand the relief being sought by this motion. It appears that the plaintiff wishes the court to take judicial notice of certain federal cases, cited on pages 2-3 of the motion, but the relevance of these cases to any contested issue of law or fact in this case remains unclear. At best, the request is premature. If plaintiff wishes to rely on these federal cases in response to the <u>demurrer</u> filed by defendants (to be heard on February 25, 2025), plaintiff may explain their relevance in an opposition brief (due February 10, 2025). If plaintiff wishes to rely on these federal cases at <u>trial</u> , then that issue will be addressed even later in the case. Until then, the issue is not ripe, as there is no “record” to supplement. The motion is DENIED.

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Calendar Line 2

Case Name: *Kim Narog v. William T. Arkley et al.*

Case No.: 24CV441458

I. BACKGROUND

This lawsuit arises from a dispute over ownership of real property located at 4680 Meritage Court in Gilroy, California. Self-represented plaintiff Kim Narog filed his original and still-operative complaint on June 20, 2024. The complaint states five causes of action, some of which attempt (improperly) to combine separate and distinct causes.¹ The five causes of action are: (1) a cause of action that appears to allege unidentified “deceptive” and “unfair” business practices as well as unspecified “fraud”; (2) “Unconscionable Contract/ Violation of Homeowners’ Bill of Rights”; (3) “Breach of Fiduciary Duty/ Quiet Title”; (4) “Contractual Breach of Good Faith and Fair Dealing”; and (5) Declaratory Relief.

The named defendants in the complaint are William and Lorie Arkley, individually and as trustees of The William and Lorie Arkley Trust (collectively, the “Arkley Defendants”), and Excel Trust Deed Investments, Inc. (“Excel”). The complaint also refers to Does 1 through 10 in the fourth paragraph. On August 2, 2024, Narog filed a Doe amendment substituting Craig Cuffie, Karen Cuffie, the Cuffies in their capacity as trustees of The Cuffie Family Trust (collectively, the “Cuffie Defendants”), and PLM Loan Management Services, Inc., as Does 1 through 4.

Narog is self-represented, which is sometimes referred to as appearing “in propria persona.” “[W]hen a litigant is appearing in propria persona, he is entitled to the same, but no greater, consideration than other litigants and attorneys. Further, the in propria persona litigant is held to the same restrictive rules of procedure as an attorney.” (*Burnete v. La Casa Dana Apartments* (2007) 148 Cal.App.4th 1262, 1267 [internal citations omitted]; see also *Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543 [self-represented litigants “are held to the same standards as attorneys” and must comply with the rules of civil procedure]; *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985 [“A doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation.”].) As Narog is not an attorney, he cannot represent KJMN Properties LLC, the purported second plaintiff on the complaint.

On August 28, 2024, this court (Judge Arand) denied Narog’s ex parte application for a writ of possession. On August 30, 2024, Judge Arand denied Narog’s second application for a writ of possession, as well as his request for specific performance, a temporary restraining order, and a preliminary injunction. As noted in the August 30 order: “Among other defects, Plaintiffs have not shown likelihood of success on the merits, and the property was already foreclosed.”²

¹ The complaint’s caption page lists seven causes of action, but this does not correspond to the causes of action in the body of the complaint.

² The court takes judicial notice of Judge Arand’s August 30, 2024 order on its own motion under Evidence Code section 452, subdivision (d).